

# Election and Voting Law: Resources for Congressional Offices

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# Election and Voting Law: Resources for Congressional Offices

This report is intended to serve as a starting point for congressional offices covering voting and elections. It focuses on resources related to laws governing federal elections and voting. It outlines and describes some of the key sources of laws, pending legislation, regulations, cases, CRS Products, and federal agencies working in this subject area. It also contains sections dedicated to the voting process, voting rights, campaign finance, and presidential elections.

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October 6, 2026

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## Introduction

This report is intended to serve as a starting point for congressional offices covering voting and elections. It focuses on resources related to laws governing federal elections and voting. It outlines and describes some of the key sources of laws, pending legislation, regulations, cases, the Congressional Research Service (CRS) products, and federal agencies working in this subject area. This report also contains sections dedicated to the voting process, voting rights, campaign finance, and presidential elections.

## Election and Voting Law Resources

Election law in the United States is composed of limits and powers defined in the U.S. Constitution, as well as federal and state statutes, regulations, and court cases. This section identifies some of the major resources in each category.

### United States Constitution<sup>1</sup>

The U.S. Constitution serves as the framework under which other election and voting laws operate.

CRS provides information about the Constitution in *The Constitution of the United States of America: Analysis and Interpretation* (CONAN).<sup>2</sup> The CONAN website presents the text of the Constitution along with analysis by CRS attorneys, including commentary on Supreme Court decisions that have interpreted the text.

### United States Code

The *U.S. Code* is a consolidation and codification of the general and permanent laws of the United States, organized by subject matter. The *Code* is prepared by the Office of the Law Revision Counsel of the U.S. House of Representatives (OLRC).

In September of 2014, OLRC reorganized the provisions related to voting and elections, creating the new Title 52, Voting and Elections. For more information about this change, see the OLRC website, “Editorial Reclassification: Title 52, United States Code.”

Because of this reclassification, researchers may encounter references to outdated citations. OLRC provides a table with former and current classifications side by side.

## Legislation

Congress.gov is the official website for U.S. federal legislative information. The website is developed and maintained by the Library of Congress using data originated and owned by the U.S. Senate and the U.S. House of Representatives. It is usually updated the morning after a House or Senate session adjourns.

Congress.gov coverage of bills begins in 1973, with full bill text beginning in 1993. Congress.gov categorizes legislation into policy areas and legislative subjects. For example, a

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<sup>1</sup> CRS In Focus IF13267, *Congressional Authority Over Elections: Key Constitutional Provisions, Federal Statutes, and Supreme Court Rulings*, by L. Paige Whitaker, provides an overview of the legal framework for congressional authority over elections with brief descriptions of key constitutional provisions and federal statutes.

<sup>2</sup> CRS, *Constitution of the United States of America: Analysis and Interpretation* (GPO, 2023).

search of the legislative subject “Elections, voting, political campaign regulation” will return a list of bills that can then be filtered by additional criteria. To filter by facets, such as Congress and Status of Legislation, use the tool along the left-hand side of the results’ list.

## Regulations

Regulations, along with notices, proposed rules, and presidential documents, are published daily in the *Federal Register*. General and permanent rules are published annually in the *Code of Federal Regulations*, which is organized into titles according to subject area. The Government Publishing Office maintains the “Electronic Code of Federal Regulations,” or e-CFR, an electronic version of the *Code of Federal Regulations*. The e-CFR is updated frequently. Researchers can easily view “Last Amended Information” and a “Recent Changes” link per each title. Title 11 contains regulations about federal elections.

## State Resources

This CRS report does not provide resources on voting laws for individual states. Instead, it directs users to resources for compilations of state laws. For an overview of issues related to elections and voting in the states, the National Conference of State Legislatures (NCSL) maintains an “NCSL Elections Resources” website.

HeinOnline, a subscription resource available to congressional offices through the CRS La Follette Congressional Reading Room, provides numerous Subject Compilations of State Laws categorized with the subject heading “Voters and Voting.” CRS law and reference librarians can assist congressional offices with HeinOnline Subject Compilations of State Laws on request.

## Federal Agencies<sup>3</sup>

The Federal Election Commission (FEC) is an independent regulatory agency created by Congress in 1975 to administer and enforce the Federal Election Campaign Act (FECA). The FEC’s duties include disclosing public finance information, enforcing provisions of the FECA, and overseeing public funding of presidential elections.<sup>4</sup>

The Voting Section of the Civil Rights Division of the U.S. Department of Justice (DOJ) enforces the civil provisions of federal laws that protect the right to vote, including the Voting Rights Act (VRA), the Uniformed and Overseas Citizens Absentee Voting Act (UOCAVA), the National Voter Registration Act (NVRA), the Help America Vote Act of 2002 (HAVA), and the Civil Rights Act (CRA). The DOJ provides a list and summary of these laws on its website “Statutes Enforced by the Voting Section.”

The U.S. Election Assistance Commission (EAC) is an independent, bipartisan commission established by HAVA.<sup>5</sup> The EAC administers grant programs, provides for testing and

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<sup>3</sup> CRS Report R45302, *Federal Role in U.S. Campaigns and Elections: An Overview*, by R. Sam Garrett, discusses the federal government’s role in U.S. campaigns and elections and how the statutes and agencies that Congress created has affected them. CRS In Focus IF13316, *Federal Role in Elections Policy: Selected Recent Developments*, by R. Sam Garrett, discusses the role federal agencies play in federal campaigns and election policy.

<sup>4</sup> Federal Election Commission (FEC), “About the FEC.”

<sup>5</sup> The Help America Vote Act, P.L. 107-252, is codified at 52 U.S.C. §§20901-21145 (2002). For more detail about HAVA, see CRS Report R46949, *The Help America Vote Act of 2002 (HAVA): Overview and Ongoing Role in Election Administration Policy*, by Karen L. Shanton.

certification of voting systems, and studies election issues. The EAC also assists election officials by issuing guidelines for voting systems and advice on implementing the act's requirements.<sup>6</sup>

## **Additional Resources**

Law Library of Congress, "Law of the Electoral College"

Library of Congress, "U.S. Election Statistics: A Resource Guide"

National Archives and Records Administration, "U.S. Voting and Election Resources"

Cornell University Legal Information Institute, "Elections"

Georgetown Law Library, "Election Law Research Guide"

Ohio State University Moritz College of Law, "Major Pending Election Cases" and "Election Law @ Moritz—Archives"

Pace Law Library, "Election Law: Overview"

University of California at Irvine, "Election Law: Basics"

## **Selected Topics**

### **Voting Processes and Election Administration**

This section includes resources related to laws governing voter registration, ID requirements, and other logistics of election administration.

#### **Laws**

##### ***U.S. Constitution***

Constitutional provisions providing federal authority to regulate federal elections:

Article I, Section 4, cl. 1 (text | analysis)

Article II, Section 1, cl. 4 (text | analysis)

##### ***Federal Statutes***

Electoral Count Reform and Presidential Transition Improvement Act of 2022 (ECRA) (incorporated into the Consolidated Appropriations Act of 2023 [P.L. 117-328])

Defending the Integrity of Voting Systems Act (P.L. 116-179)

Help America Vote Act of 2002 (P.L. 107-252)<sup>7</sup>

National Voter Registration Act of 1993 (P.L. 103-31)

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<sup>6</sup> CRS In Focus IF12033, *The Help America Vote Act of 2002 (HAVA): An Overview*, by Karen L. Shanton.

<sup>7</sup> HAVA was amended in 2024 by the Confirmation of Congressional Observer Access Act (COCOA). COCOA provides statutory authority for designated congressional election observers. For an overview of COCOA, see CRS Testimony TE10124, *Election Observation: Best Practices and Congress's Role*, by L. Paige Whitaker.

## **State Statutes**

NCSL's "State Elections Legislation Database" tracks election-related laws and pending legislation from 2011 to 2025. The database is searchable by topics such as "Election Laws and Procedures Overview," voter registration, voter ID, absentee and early voting, and voting equipment.

## **Regulations**

Regulations promulgated by the Election Assistance Commission are published throughout the year in the *Federal Register* and once a year in the annual update of the *Code of Federal Regulations*. Regulations promulgated by the EAC are located in Title 11, Chapter 2.

## **CRS Products**

Presented in reverse chronological in order of publication on CRS.gov:

### ***Election Administration***

CRS Testimony TE10124, *Election Observation: Best Practices and Congress's Role*, by L. Paige Whitaker

CRS In Focus IF13267, *Congressional Authority Over Elections: Key Constitutional Provisions, Federal Statutes, and Supreme Court Rulings*, by L. Paige Whitaker

CRS In Focus IF12501, *Private Funding for Election Administration*, by Karen L. Shanton

CRS In Focus IF13235, *Federal Investigations and Seizures of Voting Records*, by Jimmy Balser

CRS Report R46646, *Election Administration: Federal Grant Programs for States and Localities*, by Karen L. Shanton

CRS In Focus IF12033, *The Help America Vote Act of 2002 (HAVA): An Overview*, by Karen L. Shanton

CRS Report R46949, *The Help America Vote Act of 2002 (HAVA): Overview and Ongoing Role in Election Administration Policy*, by Karen L. Shanton

CRS In Focus IF13056, *The Election Administration and Voting Survey (EAVS): Overview and 2024 Findings*, by Karen L. Shanton

CRS Report R45302, *Federal Role in U.S. Campaigns and Elections: An Overview*, by R. Sam Garrett

CRS Video WVB00652, *Election Administration: Recent Policy Developments*, by Sarah J. Eckman, R. Sam Garrett, and Karen L. Shanton

CRS Video WVB00453, *2022 Issues & Policy - Election Administration and Campaign Finance: 117th Congress Overview*, by R. Sam Garrett et al.

CRS In Focus IF11873, *Election Administration: An Introduction to Risk-Limiting Audits*, by Karen L. Shanton

### ***Election Assistance Commission (EAC)***

CRS Insight IN12713, *Commission Without Commissioners: The U.S. Election Assistance Commission*, by Karen L. Shanton

CRS In Focus IF10981, *The U.S. Election Assistance Commission (EAC): An Overview*, by Karen L. Shanton

CRS Report R45770, *The U.S. Election Assistance Commission (EAC): Overview and Selected Issues for Congress*, by Karen L. Shanton

CRS Insight IN12590, *Executive Order 14248: Action by the U.S. Election Assistance Commission on Voting System Testing and Certification Provisions*, by Karen L. Shanton

CRS Legal Sidebar LSB11368, *Executive Order on Elections: Legal Background and Court Challenges*, by Jimmy Balser and L. Paige Whitaker (In addition to the EAC, this product also discusses mail-in ballot requirements, state election database access by the federal government, federal election funding conditions, and voting systems requirements.)

CRS Insight IN12343, *Election Systems: Recent Action by the Election Assistance Commission*, by Karen L. Shanton

### ***Election Grants and Funding***

CRS In Focus IF13013, *Conditioning Federal Funding on Elections Policies: Options and Considerations for Congress*, by Karen L. Shanton

CRS In Focus IF11961, *Elections Grant Programs: Authorizations and Appropriations*, by Karen L. Shanton

CRS In Focus IF11962, *Establishing and Funding Elections Grant Programs: Policy Options*, by Karen L. Shanton

CRS Report WPD00035, *Elections Podcast: Federal Role in Elections Funding*, by Karen L. Shanton

### ***Election Systems and Election Security***

CRS In Focus IF11286, *Election Security: Federal Funding for Securing Election Systems*, by Karen L. Shanton

CRS Insight IN11831, *Election Worker Safety and Privacy*, by Sarah J. Eckman and Karen L. Shanton

CRS Podcasts & Videos WPD00099, *Elections Podcast: Federal Standards and Guidelines for Voting Systems*, by Karen L. Shanton

CRS Report R47592, *Federal Standards and Guidelines for Voting Systems: Overview and Potential Considerations for Congress*, by Karen L. Shanton

CRS In Focus IF12245, *Voting Systems and Federal Law*, by Jimmy Balser

CRS Insight IN12280, *Federal Guidelines, Testing, and Certification for Electronic Poll Books (E-Poll Books)*, by Karen L. Shanton

CRS In Focus IF11356, *Election Security: States' Spending of FY2018 and FY2020 HAVA Payments*, by Karen L. Shanton

### ***Election Workers***

CRS Insight IN11831, *Election Worker Safety and Privacy*, by Sarah J. Eckman and Karen L. Shanton

CRS Legal Sidebar LSB10781, *Overview of Federal Criminal Laws Prohibiting Threats and Harassment of Election Workers*, by Jimmy Balser

## ***Voters and Voting***

CRS Legal Sidebar LSB11456, *United States v. Benson: Sixth Circuit Denies Federal Demand for State Voter Registration List*, by Jimmy Balser

CRS In Focus IF11477, *Early Voting and Mail Voting: Overview and Issues for Congress*, by Sarah J. Eckman and Karen L. Shanton

CRS Report R46943, *Voter Registration Records and List Maintenance for Federal Elections*, by Sarah J. Eckman

CRS Legal Sidebar LSB11419, *Election Law and the Supreme Court in 2026: Pending Cases on Redistricting, Campaign Finance, and Mail-In Ballots*, by L. Paige Whitaker

CRS In Focus IF12902, *Safeguard American Voter Eligibility Act (SAVE America Act) and Federal Voter Registration Policy and Law*, by Sarah J. Eckman, L. Paige Whitaker, and R. Sam Garrett

CRS Legal Sidebar LSB11368, *Executive Order on Elections: Legal Background and Court Challenges*, by Jimmy Balser and L. Paige Whitaker

CRS In Focus IF11642, *Absentee Voting for Uniformed Services and Overseas Citizens: Roles and Process, In Brief*, by R. Sam Garrett

CRS Report R45030, *Federal Role in Voter Registration: The National Voter Registration Act of 1993 (NVRA) and Subsequent Developments*, by Sarah J. Eckman

CRS Report R46406, *Voter Registration: Recent Developments and Issues for Congress*, by Sarah J. Eckman

CRS Legal Sidebar LSB11244, *Election 2024: Recent Court Rulings on Voting and Counting Ballots*, by L. Paige Whitaker

CRS Insight IN12442, *Elections and Hurricanes Helene and Milton*, coordinated by R. Sam Garrett

CRS Report R46565, *Federal Election Results: Frequently Asked Questions*, by Sarah J. Eckman, R. Sam Garrett, and Karen L. Shanton

CRS In Focus IF12767, *Immigration Consequences of Unlawful Voting by Aliens*, by Hillel R. Smith

CRS Video WVB00691, *Election 2024: A Discussion of Hot Legal Topics*, by Jimmy Balser, Juria L. Jones, and L. Paige Whitaker

CRS Legal Sidebar LSB11125, *Overview of Federal Criminal Laws Prohibiting Interference with Voting*, by Jimmy Balser

CRS Insight IN11781, *The Freedom to Vote Act (S. 2747): Selected Major Provisions*, by Sarah J. Eckman, R. Sam Garrett, and Karen L. Shanton

CRS Legal Sidebar LSB10470, *Election 2020 and the COVID-19 Pandemic: Legal Issues in Absentee and All-Mail Voting*, by L. Paige Whitaker

CRS Report R42806, *State Voter Identification Requirements: Analysis, Legal Issues, and Policy Considerations*, by Eric A. Fischer, R. Sam Garrett, and L. Paige Whitaker

## **Additional Resources**

CRS.gov Issue Area, “Congressional Administration and Elections”

U.S. Department of Justice, “The National Voter Registration Act of 1993 (NVRA): Questions and Answers”

U.S. Election Assistance Commission, “Election Management Guidelines”

National Conference of State Legislatures, “Enactments Relating to the Electoral Count Reform Act”

The U.S. government website [Vote.gov](https://www.vote.gov) provides information searchable by state about how to register to vote or how to update voter registrations. The Federal Voting Assistance Program supports servicemembers, their families, and overseas citizens and their right to vote.

## **Voting Rights**

This section contains resources related to laws protecting the right to vote, including preventing discrimination in voter registration and voting procedures and poll access for individuals with disabilities and senior citizens.

### **Laws**

#### ***Constitutional Amendments***

Fourteenth Amendment

Fifteenth Amendment

Nineteenth Amendment

Twenty-Fourth Amendment

Twenty-Sixth Amendment

#### ***Federal Statutes***

Civil Rights Acts of 1957, 1960, and 1964 (CRA)<sup>8</sup>

- Civil Rights Act of 1957 (P.L. 85-315)
- Civil Rights Act of 1960 (P.L. 86-449)
- Civil Rights Act of 1964 (P.L. 88-352)

#### ***Cases***

The U.S. Department of Justice Voting Section maintains a list of cases in “Voting Section Litigation,” sorted by section and act under which the claim arose.

#### ***Legislation***

Congress.gov tracks relevant bills with the legislative subject “Voting Rights.”

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<sup>8</sup> According to the U.S. Department of Justice Civil Rights Division’s “Statutes Enforced by the Voting Section,” the voting provisions of the Civil Rights Act are codified at 52 U.S.C. §§ 20701-20706 (formerly 42 U.S.C. §1971 and §1974).

## **Regulations**

Implementation of the Provisions of the Voting Rights Act Regarding Language Minority Groups, 28 C.F.R., Part 55.

## **CRS Products**

Presented in reverse chronological in order of publication on CRS.gov:

CRS Report R47520, *The Voting Rights Act: Historical Development and Policy Background*, by R. Sam Garrett

CRS Report R45951, *Apportionment and Redistricting Process for the U.S. House of Representatives*, by Sarah J. Eckman

CRS Insight IN11618, *Congressional Redistricting Criteria and Considerations*, by Sarah J. Eckman

CRS Legal Sidebar LSB11431, *Congressional Redistricting: High Court Narrows Voting Rights Act in Louisiana v. Callais*, by L. Paige Whitaker

CRS In Focus IF13082, *Mid-Decade Congressional Redistricting: Key Issues*, by Sarah J. Eckman and L. Paige Whitaker

CRS Insight IN11053, *Redistricting Commissions for Congressional Districts*, by Sarah J. Eckman

CRS Report WPD00173, *The Voting Rights Act of 1965 at 60 Years: Key Supreme Court Decisions Part 1*, by L. Paige Whitaker and R. Sam Garrett

CRS Report WPD00174, *The Voting Rights Act of 1965 at 60 Years: Key Supreme Court Decisions Part 2*, by L. Paige Whitaker and R. Sam Garrett

CRS Video WVB00789, *The U.S. Courts of Appeals: Selected Decisions of Interest*, by Peter G. Berris et al.

CRS Video WVB00875, *The Supreme Court's October 2025 Term: Examining Selected Cases*, by Tamsin G. Harrington et al.

CRS Legal Sidebar LSB11297, *Redistricting: A Circuit Court Split Over Whether the Voting Rights Act Permits Vote Dilution Claims By Multiple Minority Groups*, by L. Paige Whitaker

CRS Legal Sidebar LSB11382, *The Voting Rights Act of 1965 at 60 Years: Key Supreme Court Decisions Shaping the Law Today*, by L. Paige Whitaker

CRS Report R46413, *Election Day: Frequently Asked Questions*, by Caitlin Curran

CRS Report R48180, *Supreme Court Term October 2023: A Review of Selected Major Rulings*, coordinated by Kelsey Y. Santamaria

CRS Insight IN12389, *Election Policy Fundamentals: The Secret Ballot*, by Karen L. Shanton and Tyler L. Wolanin

CRS Legal Sidebar LSB10954, *Recent Developments in the Rights of Private Individuals to Enforce Section 2 of the Voting Rights Act*, by L. Paige Whitaker

CRS In Focus IF12291, *Elections and Voting: Policy and Legal Issues for the 118th Congress*, by R. Sam Garrett and L. Paige Whitaker

CRS Legal Sidebar LSB10771, *Voting Rights Act: Section 3(c) “Bail-In” Provision*, by L. Paige Whitaker

CRS In Focus IF12015, *The John R. Lewis Voting Rights Advancement Act of 2021, S. 4 (117th Congress): Legal Overview*, by L. Paige Whitaker

## **Additional Resources**

U.S. Census Bureau, “Redistricting Data Program”

U.S. Department of Justice, “Redistricting Information”

U.S. Department of Justice, “History of Federal Voting Rights Laws”

U.S. Department of Justice, “Statutes Enforced by the Voting Section”

U.S. Department of Justice, “Voting Rights Policy and Guidance”

## **Campaign Finance<sup>9</sup>**

Campaign finance law addresses issues including fundraising, spending, and reporting. This section contains resources for conducting legal research on those topics.

### **Laws**

#### ***Federal Statutes***

Federal Election Campaign Act of 1971 (FECA) (P.L. 92-225)

Bipartisan Campaign Reform Act of 2002 (BCRA) (P.L. 107-155)

Presidential Election Campaign Fund Act of 1966 (PECA) (P.L. 89-809)

Presidential Primary Matching Payment Account Act of 1974 (P.L. 93-443)

#### ***Cases***

Federal courts have played a significant role in shaping campaign finance law, including invalidating portions of the Bipartisan Campaign Reform Act. The FEC maintains websites on “Selected Campaign Finance Law Court Cases” and a “Court Case Alphabetical Index.”

CRS Report R45320, *Campaign Finance Law: An Analysis of Key Issues, Recent Developments, and Constitutional Considerations for Legislation*, by L. Paige Whitaker, discusses provisions of the Federal Election Campaign Act (FECA) and Supreme Court decisions relevant to campaign finance law and legislation. CRS Legislative Attorney L. Paige Whitaker also authored CRS Infographic IG10054, *Campaign Finance Law and the U.S. Supreme Court*.

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<sup>9</sup> CRS Video WVB00866, *Campaign Finance: Key Issues in the 2026 Congressional Elections*, by R. Sam Garrett and L. Paige Whitaker, highlights policy and legal issues in campaign finance and key developments for the 2026 congressional election cycle.

## Legislation

### *Federal Legislation*

CRS Report R41542, *The State of Campaign Finance Policy: Recent Developments and Issues for Congress*, by R. Sam Garrett, discusses recent legislative activity on campaign finance from the 115<sup>th</sup> through the 119<sup>th</sup> Congresses. CRS Insight IN12198, *Federal Election Commission Administrative Fine Program*, by R. Sam Garrett, also discusses recent legislative activity extending that program's expiration date.

Updated information on the status of the bills mentioned in these products is available from Congress.gov.

### *State Legislation*

NCSL maintains a Campaign Finance Legislation Database that contains state legislation from 2015 onward. NCSL also maintains a database of archived state campaign finance legislation from 1993 to 2013.

### *Regulations*

Title 11, Chapter 1 of the *Code of Federal Regulations* contains regulations promulgated by the FEC.

The FEC also maintains its own site for regulatory information, "Commission Regulations." This includes the text of Title 11 of the C.F.R., the Searchable Electronic Rulemaking System, and an index of *Federal Register* notices.

NCSL maintains on its website a Campaign Finance Regulation: State Comparisons site that tracks state regulations on contributions to PACs, disclosure requirements, public financing, restrictions on use of campaign funds, and finance reporting and enforcement requirements.

## CRS Products

Presented in reverse chronological order of publication on CRS.gov):

CRS Legal Sidebar LSB11419, *Election Law and the Supreme Court in 2026: Pending Cases on Redistricting, Campaign Finance, and Mail-In Ballots*, by L. Paige Whitaker

CRS Video WVB00866, *Campaign Finance: Key Issues in the 2026 Congressional Elections*, by R. Sam Garrett and L. Paige Whitaker

CRS Report R45160, *Federal Election Commission: Membership and Policymaking Quorum, In Brief*, by R. Sam Garrett

CRS Report R41542, *The State of Campaign Finance Policy: Recent Developments and Issues for Congress*, by R. Sam Garrett

CRS Video WVB00763, *Elections and Campaign Finance: Overview and Recent Issues*, by R. Sam Garrett and L. Paige Whitaker

CRS In Focus IF12857, *Elections and Campaign Finance: Policy and Legal Background for Congress*, by R. Sam Garrett and L. Paige Whitaker

CRS Insight IN12222, *Artificial Intelligence (AI) and Campaign Finance Policy: Recent Developments*, by R. Sam Garrett

CRS In Focus IF12451, *H.R. 4563, the American Confidence in Elections (ACE) Act*, coordinated by Karen L. Shanton

CRS In Focus IF12691, *PACs and Super PACs in Federal Election Campaigns: Legal Framework*, by L. Paige Whitaker

CRS Insight IN12037, *Elections and Campaign Finance Policy: A CRS Podcast Series*, by Karen L. Shanton

CRS Podcasts & Videos WVB00644, *Campaign Finance: Introduction and Recent Developments*, by R. Sam Garrett and L. Paige Whitaker

CRS Report WPD00076, *CRS Case Method: Citizens United v. FEC and First Amendment Protection for Political Speech*, by David Gunter and L. Paige Whitaker

CRS In Focus IF12468, *Artificial Intelligence (AI) in Federal Election Campaigns: Legal Background and Constitutional Considerations for Legislation*, by L. Paige Whitaker

CRS Report R45320, *Campaign Finance Law: An Analysis of Key Issues, Recent Developments, and Constitutional Considerations for Legislation*, by L. Paige Whitaker

CRS Report WPD00034, *Elections Podcast: Federal Role in Campaign Finance*, by Karen L. Shanton and R. Sam Garrett

CRS Report R41604, *Proposals to Eliminate Public Financing of Presidential Campaigns*, by R. Sam Garrett

CRS Report R44447, *Campaign Contributions and the Ethics of Elected Officials: Regulation Under Federal Law*, by Cynthia Brown, Jack Maskell, and L. Paige Whitaker

CRS In Focus IF10277, *Candidates, Groups, and the Campaign Finance Environment: A Brief Overview*, by R. Sam Garrett

CRS Insight IN12581, *Campaign Finance Policy and Campaign Security*, by R. Sam Garrett

CRS Report R43719, *Campaign Finance: Constitutionality of Limits on Contributions and Expenditures*, by L. Paige Whitaker

## **Additional Resources**

Federal Election Commission, “Campaign Finance Reports and Data”

Federal Election Commission, “Policy and Other Guidance”

Federal Election Commission, “Presidential Election Campaign Fund Tax Check-Off Chart”

## **Presidential Elections**

This section contains constitutional provisions, statutes, and resources for other aspects of presidential elections, including information on the Electoral College.

### **Laws**

#### ***U.S. Constitution***

Article II, Section 1, cl. 2-4 (text | analysis)

## ***Constitutional Amendments***

Twelfth Amendment

Twenty-Third Amendment

## ***Federal Statutes***

Title 3, Chapter 1, of the *U.S. Code* covers “Presidential Elections and Vacancies.” The Electoral Count Reform Act amended several sections of Title 3 in 2022.

## **CRS Products**

CRS Report R48936, *The Electoral College: Frequently Asked Questions*, by R. Sam Garrett

CRS Report R48309, *Joint Session of Congress for Counting Electoral Votes for President*, by Elizabeth Rybicki, L. Paige Whitaker, and R. Sam Garrett

CRS Insight IN12396, *Recent Developments in the Democratic Presidential Nominating Process*, by R. Sam Garrett

CRS Legal Sidebar LSB11094, *Disqualification of a Candidate for the Presidency, Part I: Section 3 of the Fourteenth Amendment as It Applies to the Presidency*, by Jennifer K. Elsea, L. Paige Whitaker, and Juria L. Jones

CRS In Focus IF12682, *Electoral College Overview*, by R. Sam Garrett

CRS In Focus IF11555, *Presidential Candidate and Nominating Convention Security*, by Shawn Reese

CRS Legal Sidebar LSB11096, *Disqualification of a Candidate for the Presidency, Part II: Examining Section 3 of the Fourteenth Amendment as It Applies to Ballot Access*, by L. Paige Whitaker, Jennifer K. Elsea, and Juria L. Jones

CRS In Focus IF12489, *Election Administration: Overview of FY2024 Financial Services and General Government (FSGG) Appropriations*, by Karen L. Shanton

CRS Legal Sidebar LSB10515, *Supreme Court Clarifies Rules for Electoral College: States May Restrict Faithless Electors*, by Jacob D. Shelly

## **Additional Resources**

USA.gov, “Presidential Election Process”

National Archives and Records Administration, “The Electoral College”

Federal Election Commission, “Election Results and Voting Information”

University of California at Santa Barbara, The American Presidency Project, “Presidential Elections Data”

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